

A MEASURE

PASSED BY

THE NATIONAL ASSEMBLY OF THE CHURCH
OF ENGLAND

To make provision for Unions of Benefices outside
the City of London, for disunions, alterations of
boundaries and other purposes, and for matters
incidental thereto. [14th July 1924.]

INQUIRIES.

1. The Diocesan Conference of any diocese may ^{Diocesan} appoint any Diocesan Board or standing committee, or ^{Committee.} a committee specially constituted to deal with matters connected with this Measure, to be the Diocesan Committee for the purposes of this Measure.

It shall be the duty of the Diocesan Committee from time to time to make a general survey of the diocese either as a whole or in sections in relation to the exercise of any of the powers of this Measure, and to consider whether it is expedient that any action be taken thereunder in reference to any benefice or benefices within the diocese and to advise and report to the bishop thereon; and if any report of the committee shall recommend that any such action be taken and shall require the Ecclesiastical Commissioners to initiate proceedings towards the exercise of any of the powers of this Measure, the bishop may forward the report to the Ecclesiastical Commissioners.

2.—(1) Whenever the bishop of any diocese shall forward to the Ecclesiastical Commissioners a report of a Diocesan Committee requiring them to initiate proceedings towards the exercise of any of the powers of this Measure in relation to any benefice or benefices in the diocese, and shall signify in writing to the Ecclesiastical Commissioners his approval of the requirement, or it shall appear to the Ecclesiastical Commissioners, whether on their own motion or on any representation made to them, that inquiry

Bishop on request of Ecclesiastical Commissioners to issue commission as to proposed union of benefices or other proposal.

ought to be made as to the desirability of uniting any two or more benefices or of exercising in relation to any benefices any of the other powers mentioned in subsection (2) of this section, they shall request the bishop of the diocese in which it is situate that one of the said benefices which has or is considered by them to have the largest population to cause a commission to be issued under his hand and seal addressed to commissioners to be nominated as hereinafter provided, authorising and requiring them to inquire and report to him whether any union should be made or any of such other powers should be exercised, and to inquire into and report upon all such facts and circumstances affecting the benefices named in the commission or any of them and relevant to the matters referred to in the commission as they shall consider expedient, and to make recommendations as to the terms on which any union or other proposal in favour whereof they report shall be carried into effect. The bishop may upon such request issue the commission, and the commissioners shall thereupon make a local inquiry in the prescribed manner and report as to the matters referred to therein.

Powers
exercisable
under this
Measure.

(2) The powers exercisable under this Measure include power—

- (a) to unite two or more benefices;
- (b) to divide any benefice and unite all the several parts thereof to other benefices;
- (c) to sever from any benefice any part or parts thereof, and to unite the part or parts so severed to any other benefice or to other benefices; and
- (d) to alter the boundaries of any parish by annexing thereto any contiguous area whether portion of another parish or extra-parochial.

Application
to sinecures.

(3) The provisions of this Measure as to the union of benefices shall authorise and apply to the union of any one or more sinecure or sinecures with any one or more benefice or benefices, and in relation to any such union references in this Measure to a benefice shall so far as applicable be deemed to include a sinecure: Provided that this subsection shall only apply to a sinecure rectory or vicarage.

Power to
alter
boundaries

(4) The foregoing power to alter the boundaries of any parish shall authorise the commissioners, if in the

course of their inquiry it shall seem to them expedient, to recommend an alteration of boundaries as between any one or more of the parishes of the benefices to which their inquiry relates and the parish of any other benefice not referred to in the commission, and any such recommendation may, if the patron of such other benefice gives his consent in writing thereto, be carried into effect as part of the report of the commissioners under this Measure.

extended to benefice not referred to in commission.

(5) The commissioners, in reporting as to the benefices to which their inquiry relates, may make recommendations for the exercise of any one or more of the powers contained in subsection (2) of this section, and if the inquiry relates to more than two benefices, may make such recommendations in respect of any two or more of them, and any such recommendation may be by way of addition or as an alternative to any proposal mentioned in the commission.

Commissioners' discretion as to recommendations in their report.

(6) The commissioners shall in making any report under this Measure have full regard to the circumstances and interests of the parishes affected by their inquiry, and it shall be the duty of each and every of the commissioners to consider the matters under inquiry in their relation to such circumstances and interests and to the interests of religion in England generally.

Duty of the commissioners in making their report.

CONSTITUTION OF COMMISSIONS OF INQUIRY.

3.—(1) The commission shall be constituted and the commissioners shall be nominated as follows, namely:—

Constitution and nomination of commission.

- (a) One commissioner shall be nominated by the bishop of the diocese in which the benefices affected by the proposed inquiry are situate, or in case the benefices are situate in more than one diocese then jointly by the bishops of those dioceses;
- (b) One commissioner shall be nominated jointly by the patron and the Parochial Church Council of each benefice affected, or, if in any benefice there are two or more separate Parochial Church Councils, then jointly by the patron and both or all of the Parochial Church Councils.
- (c) Where more than two benefices are affected by the proposed inquiry, one additional commissioner for every two benefices after the first

two shall be nominated by the Diocesan Committee (if any), or if the benefices are situate in more than one diocese then by the Diocesan Committee (if any) of the diocese of the bishop by whom the commission is to be issued.

- (d) One other commissioner (who shall act as chairman and have a casting vote in addition to his vote as commissioner) shall be nominated by the Ecclesiastical Commissioners.

Nomination
where the
bishop is
patron.

(2) If the bishop of the diocese in which any benefice is situate is also the patron or one of the patrons of that benefice, the bishop shall not in respect of that benefice join in the nomination of a commissioner under subsection (1) (b) of this section, and in such case the nomination may be made by the other or others of the parties mentioned in such subsection.

Nomination
where there
is no
Parochial
Church
Council.

(3) In the case of any benefice in which there shall not be any Parochial Church Council, the right to nominate a commissioner in respect of that benefice under subsection (1) (b) of this section shall be exercisable solely by the patron: Provided that if the bishop of the diocese in which such benefice is situate is the sole patron thereof, no commissioner shall be nominated under subsection (1) (b) of this section in respect of that benefice.

Default by
one of the
parties to
joint
nomination.

(4) If any of the parties having a joint right of nomination shall neglect or refuse to enter upon or proceed with the nomination of a commissioner, the bishop by whom the commission is to be issued may accept a nomination made or agreed by the other or others of the parties having such joint right without the concurrence of the party in default. And the bishop may act upon such information or evidence of default as he shall consider sufficient. And any nomination so accepted by the bishop shall be valid and effectual for all purposes and notwithstanding that the period of thirty days mentioned in the next subsection hereof may have expired.

Lapse of
right of
nomination.

(5) If the party or parties entitled as aforesaid to the right to nominate a commissioner in respect of any benefice shall, for a period of thirty days after being requested in writing so to do by the bishop by whom the commission is to be issued, fail or neglect or refuse to

nominate a commissioner or fail to agree as to the person to be nominated, his or their right to nominate to such commission shall lapse, and in such case (subject as hereinbefore provided) a commissioner in respect of that benefice shall be nominated by the Diocesan Committee of the diocese in which the benefice is situate, if the committee be requested so to do by the bishop by whom the commission is to be issued.

(6) The bishop shall in any case where any right to nominate a commissioner in respect of any benefice shall have lapsed as aforesaid, be at liberty to issue the commission to such persons as shall have been duly nominated as commissioners, and the commission shall in such case be valid and effectual notwithstanding such lapse, provided that the number of commissioners be sufficient to form the prescribed quorum.

Commission may be issued notwithstanding lapse of right of nomination.

(7) Proposals under different sections of this Measure may be referred for inquiry to one and the same commission being a commission duly constituted under this present section for the purposes of an inquiry relating to all the benefices affected by such proposals.

Inquiries under different sections.

SCHEMES AND MATTERS INCIDENTAL THERETO.

4.—(1) The bishop on receiving a report from commissioners shall cause the same or copy thereof to be transmitted to the Ecclesiastical Commissioners, who shall, if the commissioners making the report shall unanimously, or by a majority of votes, recommend that an union be made or other action be taken, and if the bishop of the diocese or the bishops of the dioceses affected shall signify in writing his or their approval of the report, but not otherwise, cause to be prepared a Scheme based on the terms recommended for effecting the union or other matters proposed by the report, and the Scheme may with the assent of the bishop of the diocese or the bishops of the dioceses affected embody any modification of the proposals contained in the report.

Transmission of report to Ecclesiastical Commissioners and preparation of draft Scheme.

(2) Any Scheme under this Measure may contain all such provisions in addition to those expressly authorised by the Measure as in the opinion of the Ecclesiastical Commissioners may be necessary or desirable for effectually carrying out the specific proposals contained in the Scheme.

What may be inserted in the Scheme.

Directions
as to
patronage
to be con-
tained in
a Scheme.

5. A Scheme for an union of benefices may include directions with reference to the designation or selection of the first incumbent of the united benefice, and shall, if all the benefices are not in the same patronage, contain directions for the settlement of the future exercise of the rights of patronage of the united benefice whether by regulation of the course and succession in which the patrons shall present or nominate thereto or otherwise.

Form and
extent of
proposed
union to be
defined by
the Scheme.

6.—(1) Every Scheme for an union of benefices shall recommend that the benefices proposed to be united shall become permanently united together and form one benefice with cure of souls, and either—

- (a) that the parishes or places forming or comprised in the benefices proposed to be united or any two or more of them shall be united into one parish for ecclesiastical purposes, or
- (b) that such parishes or places shall continue in all respects distinct subject to the express provisions of the Scheme.

Determina-
tion of the
diocese,
arch-
deaconry
and rural
deanery of
the united
benefice.

(2) Every such Scheme shall, where the benefices proposed to be united are not all in the same diocese, recommend the diocese to which the united benefice shall belong, and shall also in such case, and in any other case where the parishes concerned are not all in the same archdeaconry or rural deanery, recommend the archdeaconry and rural deanery to which the united benefice shall belong.

Application
of section
to part of a
benefice.

(3) The provisions of this section shall apply with necessary modifications to any case where it is proposed that any part or parts of any benefice or benefices be united to any other benefice or benefices.

Scheme to
define event
on which it
is to come
into opera-
tion.

7.—(1) Every Scheme under this Measure shall recommend the event or contingency on the happening of which any union or other matter proposed by the Scheme shall come into operation, but not so as to postpone such operation later than the date of the first avoidance of that one of the benefices affected by the union or other matter proposed by the Scheme which shall last be avoided after the publication in the *London Gazette* of the order affirming the same.

Appoint-
ment of

(2) The Ecclesiastical Commissioners may if they think fit insert in any Scheme for an union of benefices

provisions directing that if the benefices proposed to be united are not at the date of the order affirming the Scheme all held by the same incumbent, then on any avoidance of either or any of the said benefices before the happening of the event or contingency on which the union is to come into operation, the incumbent of the other or one of the other of the said benefices shall, if willing, be admitted and instituted or licensed to the vacant benefice, and any direction as aforesaid shall be sufficient to enable such incumbent, notwithstanding any statute or Measure relating to the holding of benefices in plurality, to accept the vacant benefice, and to hold the same with any other or others of the said benefices already held by him.

incumbent
pending
union.

8. Every Scheme under this Measure for the formation of an united benefice may contain directions for assigning or appropriating or otherwise providing a house of residence as and for the parsonage house of the united benefice.

Parsonage
house of
united
benefice.

9. Every Scheme under this Measure which recommends that parishes or places shall be united into one parish shall, if more than one church be left standing or remaining within the united parish, recommend which church shall be the parish church, but, if only one church shall be left standing, such church shall be the parish church of the united parish.

Parish
church of
united
parish.

10.—(1) A draft of every Scheme under this Measure (whether being an original Scheme or a supplementary Scheme as hereinafter mentioned) shall be published locally in the prescribed manner, and shall also be submitted to the patron or patrons concerned and to the several parochial Church Councils of the parishes or places affected by the Scheme and to the Diocesan Committee (if any) of the diocese or of each of the dioceses concerned if more than one, together with a notice in each case requiring any objections to such draft Scheme to be stated or transmitted in writing to the Ecclesiastical Commissioners within the prescribed time.

Publication
of draft
Scheme.

Objections.

(2) After giving full consideration to all objections, if any, and after making such alterations, if any, in the draft Scheme as having regard to such objections they shall deem right, and after submitting such alterations, if any, to the bishop of the diocese or the bishops of the

Certification
of Scheme
to the King
in Council.

dioceses affected and obtaining his or their consent thereto in writing, the Ecclesiastical Commissioners shall certify the Scheme and the consent thereto in writing of the bishop or bishops to His Majesty in Council: Provided that the Ecclesiastical Commissioners may at any stage before such certification withdraw any Scheme or draft Scheme if after full consideration they shall deem it advisable so to do.

Appeals to
the King in
Council.

(3) After any Scheme shall have been certified as aforesaid notice of such certification shall be given in the prescribed manner and within the prescribed time, and any person who has in due time and manner made objection to the draft Scheme may appeal to His Majesty in Council against the Scheme or any part thereof.

(4) If no appeal is made within one calendar month after the date of the notice of certification His Majesty in Council may make and issue any order or orders for affirming the Scheme.

Hearing by
Judicial
Committee.

(5) If any appeal is so made, His Majesty in Council may order and direct that the appeal shall be heard by the Judicial Committee of the Privy Council, and the Judicial Committee shall make report to His Majesty in Council thereon, and may propose to His Majesty in Council to affirm or dismiss the Scheme certified by the Ecclesiastical Commissioners or to return the same to the Ecclesiastical Commissioners for alteration or amendment, and His Majesty may affirm or dismiss the Scheme accordingly, or return the same to the Ecclesiastical Commissioners to be reconsidered as to any part thereof.

Orders in
Council to
be gazetted
and to have
force of law.

11.—(1) An Order in Council affirming, whether with or without variation, any Scheme under this Measure shall as soon as may be after the making thereof by His Majesty in Council be inserted and published in the *London Gazette*, and every such Order in Council and the provisions of the Scheme as thereby affirmed shall so soon as the Order shall have been gazetted (but subject and without prejudice to the rights of any incumbent affected thereby who shall not assent thereto) have full force and effect of law in all respects and as to all things therein contained.

Orders in
Council to

(2) Every such Order in Council shall be registered in the registry of the diocese or each of the dioceses to

which the benefices or places affected thereby shall, or shall respectively, belong, and the registrar of the diocese is hereby required to make such registration. be registered.

(3) After any Scheme under this Measure shall have been affirmed by an Order in Council duly gazetted, such Scheme shall be valid and of full force and effect notwithstanding any previous non-compliance with any of the requirements of this Measure or any omission in regard thereto and notwithstanding any variations between such Scheme and the proposals on which the same was based. But no Scheme hereunder shall have any force or effect unless and until affirmed by an Order in Council duly gazetted. Scheme to be valid notwithstanding informalities.

(4) His Majesty in Council may at any time after the issuing of any Order affirming any Scheme make a supplementary Order affirming a Scheme to be submitted to His Majesty in Council by the Ecclesiastical Commissioners for remedying any defects or supplying any omissions which in the opinion of the Ecclesiastical Commissioners shall exist in the original Order or in any prior supplementary Order or for making any corrections, alterations or additions in relation thereto which may be found expedient or necessary, and every such supplementary Order and the Scheme thereby affirmed shall have the same force and effect, and the provisions of this Measure shall apply thereto, in all respects as if they had formed part of the original Order and Scheme, provided that the same consents shall be necessary to the Scheme on which such supplementary Order is founded as would have been necessary if it had been an original Scheme, but no new commission or inquiry shall be necessary prior to the submission to His Majesty in Council of any of such supplementary Scheme. Supplementary Schemes and Orders.

12.—(1) If after an union of benefices whether made under this Measure or under any Act of Parliament or otherwise it shall appear desirable to the Ecclesiastical Commissioners whether on their own motion or on any representation made to them— Supplementary powers.

(a) that, in the case of an united benefice of which the parishes shall not have been united, those parishes or any two or more of them should be united for ecclesiastical purposes, or

- (b) that in the case of an united benefice of which the parishes shall have been united, some other church situate within the united benefice should be substituted for the existing parish church of the united parish, or
- (c) that in the case of an united benefice of which the parishes shall not have been united, some other church situate within any one of the said parishes should be substituted for the existing parish church of that parish,

or in a report of the Diocesan Committee approved in writing by the bishop of the diocese and forwarded by him with such approval to the Ecclesiastical Commissioners they are required to initiate proceedings with a view to effecting any of the said objects, the Ecclesiastical Commissioners shall request the bishop of the diocese in which the united benefice is situate to cause a commission to be issued to commissioners to inquire into and report upon the desirability of those parishes being so united or such substitution being made, as the case may be, and upon all matters arising in connection with any recommendation they may make as to any such union or substitution.

(2) The bishop may thereupon issue the commission to commissioners nominated in manner provided by section three of this Measure, and if the report of the commissioners shall recommend that any action be taken, such recommendation, either with or without modifications, may be carried into effect by a Scheme under this Measure in manner and in accordance with the procedure hereinbefore authorised and directed.

Union of
benefices
held in
plurality.

13. Where any two benefices are held in plurality or, being vacant, were held in plurality by the last incumbent thereof, and have been so held continuously, save during periods of avoidance, either for a period of sixty years or under three successive incumbencies for any shorter period, the Ecclesiastical Commissioners may with the consent of the Diocesan Committee (if any) of the diocese or of each of the dioceses, if more than one, to which the said benefices belong, and with the approval of the bishop or bishops of such diocese or dioceses, cause to be prepared a Scheme for the union of the said benefices under the provisions of this Measure without

any previous inquiry or report, but, save as regards proceedings prior to the preparation of a draft Scheme, all the provisions of this Measure relating to an union of benefices shall apply to any union proposed to be effected by a Scheme under this section: Provided that if the patron or Parochial Church Council of either benefice upon publication of the draft Scheme shall make any objection thereto, and the Ecclesiastical Commissioners on consideration of the objection are unable to come to an agreement with the objector, then the draft Scheme shall be withdrawn by the Ecclesiastical Commissioners.

REVENUES OF BENEFICES UNITED.

14.—(1) Upon any union of benefices under this Measure coming into operation, any church or parsonage house within the united benefice and other real or personal property which shall have previously been vested in right of his benefice in the incumbent of any separate benefice comprised in the union, and shall not become vested in the Ecclesiastical Commissioners under the provisions of this Measure or be otherwise appropriated under the authority thereof, shall vest in the incumbent for the time being of the united benefice.

Vesting of church and parsonage house and other property in incumbent of united benefice.

(2) Where by any Scheme under this Measure it is proposed to sever from a benefice any part or parts thereof and to unite the part or parts so severed to any other benefice or benefices, provisions may be inserted in the Scheme for annexing to any part so to be severed a portion of the endowment and other real and personal property of the benefice from which such severance shall be made. And where by any Scheme under this Measure it is proposed to divide a benefice and to unite all the several parts thereof to other benefices, provision may be inserted in the Scheme for annexing the endowment and other real and personal property of the benefice or any portion of the said endowment and property to any one of the parts of the said benefice, or for annexing the said endowment and property or any portion thereof to any or all of the several parts of the benefice in such shares or in such manner as may seem expedient.

Provisions as to the endowments of benefices which are to be divided or from which parts are to be severed.

(3) When the union of any such part of a benefice with any other benefice or benefices shall have come into operation, the endowment and property, if any, so

annexed to such part shall become portion of the endowment and property of the united benefice, and shall vest accordingly in the incumbent of the united benefice or otherwise as provided by the Scheme recommending the annexation.

(4) Such portion, if any, of the endowment or revenue of a benefice from which any part or parts shall have been severed as aforesaid as shall not be annexed to any severed part, and shall not be required in order to leave a competent provision for the remainder of the benefice, and also such portion, if any, of the endowment or revenue of a divided benefice whereof all the parts shall have been united to other benefices as shall not be annexed to any of the several parts thereof may be dealt with and applied in like manner as is hereinafter provided in relation to the surplus revenues of benefices comprised in an union of benefices.

Disposal
of surplus
revenue of
benefices
included in
an union.

15.—(1) Whenever it shall appear to the Ecclesiastical Commissioners that the total revenue of any benefices proposed to be constituted an united benefice which would remain after making such provision out of the revenues of the said benefices or any of them as may seem expedient for any purpose for which the said revenues are applicable under any other section of this Measure, would be more than is required to form a competent provision for the united benefice, and that it is desirable that the surplus revenue or any part thereof should be applied for the benefit of any other benefice or benefices (either already existing or proposed) situate in the same diocese as that in which the united benefice is situate or to which it is assigned by the Scheme for union, and having no provision or no competent provision belonging thereto, the Ecclesiastical Commissioners may by the Scheme for union or in or by any supplementary Scheme recommend that such surplus revenue or some part or parts thereof be appropriated for the augmentation of such other benefice or each of such other benefices, and that for that purpose a portion of the endowments or property of the benefices proposed to be constituted an united benefice sufficient to provide for the augmentation or augmentations so recommended be severed or diverted from the benefice or benefices to which the same shall belong and be appropriated accordingly: Provided that before recommending any

benefice for augmentation as aforesaid, the Ecclesiastical Commissioners shall give notice in writing to the patrons of the benefices to be included in the union that there is or may be surplus revenue available for augmentation under this section, and shall consider any representation which may be made by any of the said patrons as to the benefice or benefices to be selected for augmentation or as to the division of the surplus revenue between the selected benefices if more than one: Provided also that save with the consent of the patron no severance or diversion as aforesaid of any endowment or property of a benefice shall be made so as to deprive the benefice, or the united benefice of which it is to form part, of any revenue other than and except revenue arising from endowment which belonged to the benefice prior to the 1st day of January, 1800, or arising from property representing any such endowment which shall have been sold, exchanged or otherwise dealt with since that date, and except revenue representing improved annual value arising from any sale, lease, or other disposition under the Ecclesiastical Leasing Acts of any property of the benefice, whether acquired before or after the date aforesaid, to the extent to which the revenue of the benefice has been thereby improved.

(2) The powers conferred by this section shall continue to be exercisable in regard to the revenues and endowments of the benefices comprised in a Scheme of union after the Scheme shall have been affirmed by Order in Council and the Order published in the *London Gazette* until the happening of the event or contingency upon which the union is to come into operation.

16.—(1) Where under any of the provisions of this Measure it is proposed to make any division or distribution of the endowment or property of any benefice or to sever or divert from the benefice any part of such endowment or property, such division, distribution, severance or diversion may be effected either wholly or in part by the transfer of any specific part or parts of such endowment or property or by the creation of any rentcharge or rentcharges or other annual sum or sums issuing out of or charged upon the said endowment or property, or some part or parts thereof, or by any other means approved by the Ecclesiastical Commissioners. And accordingly where any portion of the endowment or

Further provisions as to disposal of revenues.

property of any benefice is to be appropriated for the benefit of any other benefice such appropriation may be carried out by annexing to such other benefice a specified part of such endowment or property or by creating and annexing to such benefice any rentcharge or annual sum as aforesaid.

(2) Any Scheme under this Measure recommending the creation of a rentcharge shall contain all such powers for recovering the rentcharge by distress upon or perception of the rents and profits of any hereditaments to be charged therewith or otherwise or for the immediate or prospective apportionment of the rentcharge, or for other purposes in relation thereto as to the Ecclesiastical Commissioners shall seem reasonable and proper.

(3) Where any Scheme shall provide for the creation of any rentcharge or annual sum or the transfer of any endowment or property and the annexation thereof to any benefice, the rentcharge, annual sum, endowment or property to be created or transferred and annexed to such benefice shall when and so soon as the provisions of the Scheme in relation to such annexation come into operation and without any further assurance become and be for ever annexed thereto, and shall, together with, in the case of any rentcharge, all powers for recovering the same or relating thereto, be vested in and held and enjoyed by the incumbent for the time being of the said benefice as the endowment or part of the endowment thereof, subject and without prejudice nevertheless to all leases, grants, rentcharges or incumbrances, if any, then existing and legally affecting the property charged with such rentcharge or comprised in such transfer.

Apportion
ment of
charges and
incum-
brances on
endow-
ments.

17. In any case where it is proposed by any Scheme under this Measure to deal with any endowment of a benefice which is subject to first-fruits or tenths or any mortgage, charge or other incumbrance by reason whereof the incumbent is liable for the payment of any principal money or interest or any annual or other periodical sum, and the Ecclesiastical Commissioners shall consider it expedient to apportion such liability, provision may be made in the Scheme for apportioning the incumbrance, both as regards the moneys payable or to become payable thereunder or in respect thereof, and also as regards the property comprised therein or subject thereto, in such manner as the Ecclesiastical Commissioners shall think

proper: Provided that, except where the incumbrance shall be a charge forming part of the provision or endowment of some other benefice, no such apportionment shall be made without the consent in writing of the incumbrancer.

CURATES AND ASSISTANTS IN BENEFICES UNITED.

18. Any Scheme for the constitution of an united benefice whether by an union of benefices or by an union of any part or parts of any benefice with any other benefice or benefices may provide that a curate or a specified number of curates be appointed to assist the incumbent in performing the duties of the united benefice, or that provision be made either in addition to or without any proposal for the appointment of a curate or curates for assistance to be given to the incumbent of the united benefice by other clergy or by lay workers, and in any such case—

Curates and other assistants for united or enlarged benefice.

- (a) the Scheme may contain directions as to all or any of the following matters, that is to say, as to the place of residence of each or any curate so recommended, as to the church to be served by him, as to the placing of any area or district under his immediate care or supervision, as to his stipend, and as to the remuneration to be allowed for assistance by other clergy or by lay workers, and may provide for any other matter affecting the incumbent in relation to any such curate or curates or assistants as aforesaid; and
- (b) the bishop shall in respect of any and every curacy recommended by the Scheme have the like powers of requiring the nomination of and of appointing and licensing a curate, and of assigning a stipend to such curate as are conferred by section thirteen of the Pluralities Act Amendment Act, 1885, in the cases therein mentioned, but without regard to the annual value or population of the united benefice, subject nevertheless to the like right of appeal as is allowed by that section: Provided that any curate so appointed by the bishop shall hold his curacy subject to the provisions (if any) relating thereto contained in the Scheme and that a stipend may be assigned to him by the

bishop up to the amount (if any) specified in the Scheme in respect of such curacy notwithstanding that the same may exceed the stipend assignable under the above-mentioned statutory power; and

Appropriation of fund for payment of curates' stipends.

- (c) the Scheme may provide for any part of the endowment of the united benefice being appropriated as a fund whereof the income shall be applicable in such manner as shall be specified by the Scheme for or towards payment of the stipend or stipends of the curate or any of the curates to be appointed thereunder, or payment of the expenses of providing such assistance by clergy or lay workers as may be thereby recommended, and the Scheme may direct that the said fund shall be held and administered by the incumbent but shall be applicable only for the purposes aforesaid, or that the income of the said fund may be received by the incumbent as part of the income of the united benefice subject to and charged with payment of such stipend or stipends or expenses as aforesaid, or may contain such other directions in relation to the said fund and the administration thereof as to the Ecclesiastical Commissioners shall seem proper: Provided always that the Ecclesiastical Commissioners may at any time or times, with the consent of the bishop and the patron of the benefice, by an instrument under the seal of the Ecclesiastical Commissioners, determine or annul such appropriation as to the whole of the fund, or any part thereof, and thereupon the fund or such part of the fund, as the case may be, shall revert to and be held as part of the endowment of the benefice free from the purposes of such appropriation.

PULLING DOWN, SALE AND APPROPRIATION OF CHURCHES, PARSONAGES, AND OTHER PROPERTY.

Power to direct the pulling down, sale and appropriation of

19.—(1) Any Scheme of union may (subject to the restrictions hereinafter contained) provide for the erection of any new church or parsonage house, or for the pulling down, in whole or in part, or removal of any existing church or parsonage house within any benefice proposed

to be included in any union of benefices or within any parish or place proposed to be included in any union of parishes, and for the appropriation or sale of the materials and site of the same respectively and of the ground, or part of the ground, annexed or belonging thereto or for the sale or exchange of any parsonage or glebe houses or other buildings and the sites and grounds thereof, or for the appropriation of any church, or the portion thereof left standing for other purposes as hereinafter mentioned, or (subject as hereinafter provided in respect of the font, communion table and plate used for the purposes of Holy Communion) for the appropriation of any plate or furniture belonging to or held in trust for any church proposed to be pulled down, or to be appropriated to secular uses, and for the disposal of the organ in any such church or for arrangements with respect to fees, also for the transfer of any lectureship attached to any such church (but not so as to affect the right of appointment to the lectureship), or for compensation to parish clerks and other officers, or for the adjustment of private rights, or for compensating any incumbent who may be willing to resign in order to accelerate the union.

surperfluous churches, parsonages, and other property.

(2) Where under or in consequence of any proceedings under any Act of Parliament or for any other reason any church shall have ceased to be used or be no longer required for purposes of Divine Service, and the provisions of the last preceding subsection shall not be applicable thereto, the Ecclesiastical Commissioners may, with the consent of the bishop of the diocese, prepare and submit for affirmation to His Majesty in Council, in manner and in accordance with the procedure hereinbefore authorised and directed, a Scheme under this Measure providing (subject to the restrictions hereinafter contained) for the pulling down in whole or in part or removal of such church, and for the appropriation or sale of the materials and site of the same, and of the ground or any part of the ground annexed or belonging thereto (not being ground forming part of a churchyard which shall have been used for burials), or for the appropriation of the church, or the portion thereof left standing for educational or charitable or other purposes as hereinafter mentioned, or for any other matter incidental to such pulling down, removal, sale, or appropriation. Any proposal under this subsection may be made by a separate Scheme

Scheme for appropriation of disused church.

either based upon a report of commissioners or without any previous inquiry and report, or may be included in any Scheme dealing with any other matter under this Measure.

(3) No Scheme recommending the pulling down in whole or in part of any church shall be submitted to His Majesty in Council until it shall have been laid before both Houses of Parliament for the space of two calendar months.

(4) Nothing contained in the Union of Benefices Act Amendment Act, 1871, shall apply to any proceedings under this Measure.

Conditions
to be com-
plied with
in respect
of churches
proposed to
be pulled
down or
approp-
riated to
secular uses.

20. Nothing in this Measure contained shall render lawful the sale or letting or appropriation to any secular use of the site of any church unless with the consents in writing of the Archbishop of the province, the bishop of the diocese, and, in cases where there are vaults or graves or remains of persons deposited within or under the church, the Secretary of State for the Home Department, and the site shall be dealt with subject to and in conformity with such directions and restrictions as to the removal of the remains of persons deposited in any vaults or graves within or under the church, and as to leaving undisturbed and finally closing the said vaults and graves as the Secretary of State shall think fit to give or impose. And no sale or letting or appropriation to secular uses shall be made of the site of any church wherein any bodies are known to be interred until after the remains of the persons deposited within or under such church shall have been properly removed into some consecrated churchyard or burial ground, or to such portion of the vaults in the same church as may be separated and set apart for a burial place, and notice of the intention to remove such remains shall be given by the churchwardens or one of the churchwardens of the parish or united parish in which such church is situate, to the heirs, executors, administrators or other representatives of any persons interred within or under the church in all cases where such representatives can be ascertained, and a certificate in writing under the hand of one of the said churchwardens that such removal has been duly made and that such notice has been given or that such representatives cannot be ascertained shall be conclusive evidence that the provisions of this Measure

in regard to such removal have been duly complied with: Provided that nothing herein contained shall render lawful the sale or letting of any churchyard which shall have been used for burials.

- 21.—(1) Where any church shall be directed to be pulled down under the authority of this Measure, then—
- (a) the font, communion table and plate used for the purpose of the Holy Communion shall not be sold, but shall be transferred to the parish church or to one of the churches (if there shall be more than one) of the benefice or united benefice in which the church to be pulled down is situate, or, if the font, communion table or plate be not needed for such church, or for any of such churches, then to any church or chapel, churches or chapels within the diocese which the bishop shall select; and
- (b) it shall be lawful for the representatives, relations or friends of any persons who shall have been interred within or under the church proposed to be pulled down, or in the churchyard or burial ground thereof, so far as shall be consistent with any restrictions or conditions imposed by the Secretary of State, and under proper directions, to procure the remains of such persons to be removed and re-interred, and also under proper directions to remove the tablets, monuments and memorials erected or fixed in the church to their memory to any place the persons removing the same may think proper;
- (c) any tablets, monuments or memorials within the church not removed by such representatives, relations or friends shall be carefully removed and fixed in some convenient part of the church, or of one or other of the churches (if more than one), of the parish or united parish in which the church to be pulled down is situate or otherwise suitably disposed of, and any question as to the selection of a church or churches for this purpose or as to the disposal of any of the said tablets, monuments or memorials shall be settled by the bishop.
- Further conditions in respect of churches proposed to be pulled down.
- Removal of font, communion table and plate.
- Removal of remains and memorials by representatives of deceased persons.
- Disposals of tablets, monuments, and other memorials to the dead.

(2) The provisions of this section shall so far as applicable extend and apply to any case where part only of a

church is directed to be pulled down or where any church is appropriated to any secular use under the authority of this Measure.

Payment of expenses of removal of remains and of font and other things.

(3) Where any church shall be directed to be wholly or partly pulled down, or to be appropriated to any secular use under the authority of this Measure, the expenses of and in connection with the removal and re-interment of remains and the removal and transfer of the font, communion table and communion plate, and the removal and transfer of tablets, monuments and memorials to the dead from within the church, shall be paid by the Ecclesiastical Commissioners out of the Expenses Fund hereinafter provided, and the expenses so payable by the Ecclesiastical Commissioners shall include any reasonable expenses incurred by the representatives, relations or friends of persons buried within or under the church in any case where they shall themselves procure the removal of any remains or any tablets, monuments or memorials, but not exceeding the sum of ten pounds in each such case.

No faculty required or fees payable for removal of memorials.

(4) Any tablets, monuments or memorials to the dead which are to be removed from any church under the provisions of this Measure may be so removed, and may be transferred to any other church within the same benefice or united benefice appointed or selected in that behalf, without a faculty from the Bishop's Court and without payment of any fees to the incumbent or to any officer of the church or parish.

Churches and other properties directed to be pulled down, sold or exchanged to vest in Ecclesiastical Commissioners.

22. Where by any Scheme under the authority of this Measure the site of any church shall be directed to be sold, or any parsonage house or land or other hereditaments shall be directed to be sold or exchanged, such site, parsonage house, land, or other hereditaments shall, upon the direction for sale or exchange coming into operation and without any conveyance or other assurances, become and be vested in the Ecclesiastical Commissioners for the purpose of being dealt with or disposed of in accordance with the terms of the Scheme and the provisions of this Measure, and the Ecclesiastical Commissioners shall have full power to determine so as to bind all persons interested in the property of any benefice any question as to the extent or limits of the lands so vested in them, and the law relating to ecclesiastical dilapidations shall in respect

to the dilapidations existing at the time of such vesting be applicable to such parsonage house, land or hereditaments as if the date of the vesting were the date of the avoidance of the separate benefice to which such parsonage house, land or hereditaments had belonged, and as if the Ecclesiastical Commissioners were the new incumbent of such separate benefice. And the Ecclesiastical Commissioners shall have power to do all things necessary for selling or disposing of the hereditaments so vested in them and any materials thereof and furniture and other things therein which are directed to be sold or disposed of, and otherwise for giving effect to the provisions of the Scheme at such time or times and in such manner as they shall deem expedient, and power in place of or until a sale to grant a lease of any such hereditaments for such term as the Ecclesiastical Commissioners may think fit, and power to make all necessary conveyances and assurances of the said hereditaments and premises. And the net moneys arising from any such sale or disposal of the said hereditaments and premises may, if so provided by the Scheme, be applied for the benefit of the united benefice or any benefice or benefices within the same diocese as that of the united benefice or (where there is no union) of the benefice to which the said hereditaments belonged, and if and so far as not so applied shall be placed to the credit of the Expenses Fund hereinafter mentioned in manner hereinafter directed.

23. The site of any church which shall be wholly or partly pulled down under the authority of this Measure unless and until sold or appropriated as hereinbefore provided and the churchyard belonging thereto shall be properly fenced in and preserved and kept free from desecration.

Site of church pulled down and churchyard to be kept in proper condition.

24. In any case where the provisions of this Measure shall authorise the making of an order for the pulling down of any church, such church or any part of the building may be left standing, and may, with the site thereof and any other ground thereto belonging (not being a graveyard or burial ground), be appropriated for any educational or charitable purpose or purposes in connection with the Church of England having in view the spiritual, intellectual, moral or social welfare of the parishioners and others, either for the benefit of the parish

Appropriation of superfluous churches for educational or charitable purposes.

Trust deed
may be
executed by
the bishop.

in which the building is situate or of any neighbouring parishes or places, or be appropriated either exclusively or in conjunction with any such purposes as aforesaid for use or occupation by any diocesan body or organisation or otherwise for the furtherance of the work of the Church of England or the administration of its affairs. And where any such appropriation shall have been directed it shall be lawful for the Bishop by any deed or deeds under his episcopal seal, and registered in the diocesan registry, to declare the special trusts and purposes upon and for which the building and land so appropriated are to be held, so far as such trusts and purposes are not specifically defined by the Scheme recommending the appropriation, and also to make such regulations and provisions as he shall think proper for the administration and management of the trust, and for the upkeep of the building, and as to the appointment of original and future trustees, and as to all other matters in relation to the trust which in the judgment of the bishop ought to be provided for in the deed of trust. And any such deed may reserve power to the bishop and his successors at any time or times to modify, vary or add to the trusts and provisions thereof in any manner not inconsistent with the terms of the Scheme. And upon the deed of trust being executed and deposited in the diocesan registry the management and control of the hereditaments, subject to the trusts thereof, shall be committed to the persons or person appointed to be the trustees or trustee thereof, and the said hereditaments shall forthwith vest in the Diocesan Authority without any further or other assurance.

PAROCHIAL RIGHTS AND OBLIGATIONS.

Rights of
parishioners.

25.—(1) When under the authority of this Measure any church shall have been constituted the parish church of any parish or united parish, or the area of the parish of any parish church shall have been enlarged or altered, the persons residing within the limits of such parish or united parish or enlarged or altered parish, as the case may be, shall, subject as in this Measure otherwise provided, enjoy the same rights and privileges whether in respect of marriages, baptisms, churchings, burials, or otherwise, and be subject to the same obligations in relation to the said church as they would have enjoyed or been subject to if such church had always existed as the

parish church for the district constituting such parish or united parish or enlarged or altered parish, as the case may be.

(2) Provided, that while and so long as any churchyard within the limits of any benefice shall remain open for interments persons having rights of burial in such churchyard shall not by reason of any union of parishes or substitution of any church for any other church as a parish church or any other thing done under the authority of this Measure become entitled to rights of burial in any other churchyard within the limits of the same benefice.

(3) When the publication of banns of matrimony shall have been duly and regularly commenced in any church such publication may be completed in the same church or in any other church which at the time of such completion shall have taken the place of the first-mentioned church for the purpose of publication of banns of matrimony.

26. Notwithstanding any union of parishes or other matter or thing carried out or done under this Measure whereby the limits of any parish shall be altered, every parish comprised in such union or affected by such matter or thing shall as to all secular rights, privileges and obligations, and for all other purposes except ecclesiastical purposes, remain distinct in the same manner as theretofore.

This Measure not to affect parishes for secular purposes.

27. It shall be lawful for the bishop from time to time to direct that services shall or shall not be held in any church, not being a parish church, in an united benefice whether united under this Measure or otherwise, and to direct what services, if any, shall be held therein.

Services in church not being parish church.

CHURCH AND PAROCHIAL TRUSTS AND CHARITIES.

28.—(1) An union of benefices or parishes shall not nor shall any other thing done under the authority of this Measure, in any way alter or affect the beneficial interest in or the trusts relating to any estates or property, charities, donations, or other benefactions, given to or for the benefit of the parishioners or any of the parishioners or applicable for the benefit of the poor of any particular parish, or held upon any special trusts in relation to any particular parish other than ecclesiastical or other trusts for which provision is made by any other section of this

Provisions as to benefactions and trusts relating to particular parishes.

Measure; but the same shall, after and notwithstanding any such union or other thing, remain and continue to be applicable for the like purposes and in the like manner and upon the like conditions as theretofore, save that where in the case of any benefaction, attendance or the performance of Divine Service or any other act is required at any parish or other church, and such church shall be pulled down or cease to be used for Divine Service, the parish church for the time being of the same parish or of any united parish in which it shall be incorporated shall be substituted for the original church for the purposes of such attendance or performance of Divine Service or other act as aforesaid.

Provisions
as to
trusteeship.

(2) Where in the case of any proposed union of benefices any property held upon special trusts is vested in or under the control of the incumbent for the time being of any of the separate parishes comprised in the proposed union either solely or jointly with the churchwardens thereof or with any other person or persons, then upon the union coming into operation the incumbent for the time being of the united benefice shall for the purposes of the trust be substituted for the incumbent of the separate parish, and if the parishes of the united benefice shall have been formed into an united parish, the churchwardens of the united parish shall be substituted for the churchwardens of the separate parish, and the trust property shall vest in or be under the control of the incumbent of the united benefice either solely or jointly with such churchwardens or other person or persons as the case may be, and such incumbent shall in relation to the trust stand in the place of and represent the incumbent of the separate parish. And where any property is vested in a corporation of which the incumbent for the time being of any separate benefice comprised in any proposed union is a member, then after the union shall have come into operation the incumbent for the time being of the united benefice shall become and be a member of the corporation in the place of the incumbent of the separate benefice.

Transfer of
trusteeship
of school,
&c.

(3) Where the incumbent of a benefice shall by virtue of his incumbency and whether solely or together with churchwardens or others be a trustee or have the management or control of any school, mission-room or other building or institution within such benefice, and

the area in which the said premises are situate shall by any Scheme under this Measure be directed to be transferred to or to become a parish or part of a parish of any other benefice, the Scheme may provide for the future trusteeship, management or control thereof, or, if no provision in this behalf be made by the Scheme, the Ecclesiastical Commissioners by an instrument under their seal deposited in the registry of the diocese in which such other benefice is situate may direct that when the Scheme shall have come into operation the incumbent for the time being of the other benefice shall, for the purposes of such trusteeship, management or control, be substituted for and stand in the place of the incumbent of the first-named benefice, and, where churchwardens are associated with the incumbent in such trusteeship, management or control, that the churchwardens of the church or one of the churches of the other benefice shall be substituted for and stand in the place of the churchwardens previously acting in relation to the premises. And any such direction shall be effectual and sufficient to authorise the incumbent or the incumbent and churchwardens so substituted and his and their successors to assume and act in such trusteeship or management or control of the said premises, and also to discharge therefrom the incumbent or the incumbent and churchwardens, as the case may be, previously acting in relation thereto. And this subsection shall be construed as extending to and including any case where the other benefice above referred to is a separate benefice constituted under a Scheme for the disunion of an united benefice.

29.—(1) Where under the authority of this Measure any church shall be ordered to be pulled down or sold or appropriated to secular uses, and any real or personal property shall be held or be applicable under any special trust as a repair fund or for any other purpose in relation to the fabric of the church or the ornaments thereof, or for payment of the expenses of maintaining the services therein, or for the remuneration of the clergyman officiating thereat, or upon any other trust for ecclesiastical purposes in connection with the said church whereof the purpose or object shall fail or cease to exist upon such church ceasing to be used for Divine Service, then and in any such case if and so far as the instrument, if any, creating the trust shall not otherwise provide, such

Disposal of
 repair funds
 and other
 funds held
 in connection
 with
 churches
 ceasing to
 be used for
 Divine
 Service.

property may be applied for the like purpose or object for the benefit of or in connection with any other church in the same benefice or united benefice, or may be applied in any manner which it would be applicable under this Measure if it were part of the permanent endowment of property of a benefice comprised in an union of benefices or such property or the proceeds of any realisation thereof or any part of the same may be carried over to the Expenses Fund hereinafter mentioned and applied as part of the said fund, and accordingly the Ecclesiastical Commissioners may, in or by any Scheme under this Measure, make any recommendation which to them shall seem proper for dealing with such property or any part thereof in any manner authorised by this subsection.

Disposal of
property
held by
Parochial
Church
Councils
which cease
to exist.

(2) Where by reason or in consequence of any union of parishes or of any other thing done under the authority of this Measure the Parochial Church Council of any church shall cease to exist, any real or personal property vested in or held by or on behalf of such Council or so much of the said property as shall not be dealt with or applied in accordance with the provisions of the last preceding subsection or any other section of this Measure, shall become vested in or be held by or on behalf of the Parochial Church Council of the parish or united parish in which such church is situate (or if there be more than one such council within the said parish or united parish then the Parochial Church Council for that part of the parish or united parish in which the church is situate) for the like purposes as nearly as circumstances will admit as those for which the same was previously applicable in the hands of the Parochial Church Council so ceasing to exist. And if any question shall arise as to the application of any such property or the income thereof, the same shall be referred to the bishop, whose decision shall be final.

Provisions
with regard
to endowed
lectureships
attached to
churches to
be pulled
down or
appropri-
ated to
secular uses.

30. Where in the case of an endowed lectureship the church in which the lectures have been customarily given shall under the provisions of this Measure be directed to be pulled down or appropriated to secular uses, or cease to be the parish church for the parish or place in which it is situate and be no longer used for Divine Service, the lectures shall be given in the church which shall be or become the parish church of such parish or place, or the bishop of the diocese may at any

time or from time to time prepare a Scheme providing for such lectures being given in some other church at such times as to the bishop shall appear convenient. And such Scheme shall be submitted to the Charity Commissioners for England and Wales, and the Scheme, if approved of by them, either as submitted by the bishop or with such alterations, if any, as shall appear to the said Commissioners to be advisable and be approved of by the bishop, and if assented to in writing by the incumbent of the church to which the lectureship is proposed to be transferred, shall be valid for effecting the purposes therein mentioned, and shall be registered in the diocesan registry: Provided that nothing herein contained shall authorise the bishop or the said Charity Commissioners to affect the right of electing or nominating the lecturer, or authorise the bishop to license a lecturer, without the consent of the incumbent of the church in which the lecturer is to officiate.

DISUNIONS.

31.—(1) If in any case where two or more benefices shall have been united whether under the authority of this Measure or of any Act of Parliament or otherwise it shall at any time appear to the Ecclesiastical Commissioners whether on their own motion or on any representation made to them that owing to any increase or shifting of population or other circumstance it may be expedient to disunite the united benefice either as regards each and all of the constituent benefices or by separating from the united benefice any one or more of such constituent benefices or any part or parts thereof respectively, or in a report of the Diocesan Committee approved in writing by the bishop of the diocese and forwarded by him with such approval to the Ecclesiastical Commissioners, they are required to initiate proceedings with a view to affecting any such disunion or separation as aforesaid, the Ecclesiastical Commissioners shall request the bishop of the diocese to cause a commission to be issued to commissioners to inquire into and report upon the desirability of such disunion and to report upon all matters arising in connection with any recommendation they may make for a disunion.

Disunion
of united
benefice.

(2) The bishop may, upon any such request as aforesaid, issue the commission to commissioners

Issue of
commission,

report, and
Scheme.

nominated in manner provided by section three of this Measure, but so that for the purposes of the nomination of commissioners the united benefice shall be treated as one undivided benefice, and the constituent benefices shall not be entitled to be separately represented on the commission. And if the report of the commissioners shall recommend that any action be taken, such recommendation either with or without modifications may be carried into effect by a Scheme under this Measure in manner and in accordance with the procedure hereinbefore authorised and directed.

Terms and
effect of
Scheme for
disunion.

(3) Every Scheme for the disunion of an united benefice shall determine and define the several parts thereof which are to become or remain separate benefices, and the limits of the parish to belong or be assigned to each separate benefice and the name or designation thereof. And upon the happening of the event or contingency upon which under the provisions of the Scheme the disunion is to come into operation the union of the united benefice shall be dissolved to the extent and in the manner directed by the Scheme, and thereupon each of the separate benefices to be constituted under the Scheme shall become and be a separate and distinct benefice to all intents and purposes, and the several parishes of such separate benefices respectively or the places assigned to them for their respective parishes (if not then already separate and distinct parishes) shall become and be separate and distinct parishes for ecclesiastical purposes. And the Scheme shall contain all necessary directions for determining the church which is to be the parish church of each of the separate benefices and for appropriating a house of residence as the parsonage house thereof, if a suitable house shall be available for such appropriation.

Settle-
ment of
patronage.

(4) Every scheme for the disunion of an united benefice shall (unless the united benefice be in sole patronage) include directions for the settlement of the future exercise of the rights of patronage of each of the separate benefices to be constituted thereunder according to a fair adjustment or partition of the patronage (due regard being had to the rights of patronage of the respective original benefices before the union thereof), and, if the case so requires, for the regulation of the course and succession in which patrons of any of the separate

benefices shall present or nominate thereto, and the Scheme may also contain directions as to the designation or selection of the first incumbent of each or any of the separate benefices.

(5) Every Scheme for the disunion of an united benefice shall contain directions as to the division or appropriation of the endowments and property of the united benefice and may provide for dividing or distributing such endowments and property between the separate benefices in such shares or in such manner as may be deemed proper and for annexing the same to the several separate benefices in accordance with such division or distribution or for assigning and annexing the said endowments and property or any part or parts thereof to any one or more of the separate benefices. And the Scheme may also provide for appropriating to any of the separate benefices or for apportioning between the said benefices or any of them any property or funds belonging to or held in connection with the united benefice which shall be subject to any special trust for ecclesiastical purposes if in any case such appropriation or apportionment shall appear to be desirable and shall not be inconsistent with the substantial objects or purposes of the trust. And the Scheme may also include provisions for compensating any incumbent who may be willing to resign the united benefice or any part thereof in order to accelerate the disunion.

Division of
endowment.

Trust
Funds.

Compensa-
tion to
retiring
incumbent.

(6) Where a Scheme for the disunion of an united benefice will take effect either in its entirety or as regards any part thereof upon the avoidance of the united benefice, the incumbent of the united benefice may at any time after the Scheme shall have been affirmed and gazetted, resign any part of the united benefice which on such avoidance is to become a separate benefice or is otherwise to be severed from the united benefice, retaining nevertheless his incumbency of such part of the united benefice as is not included in the resignation, and thereupon the Scheme shall take effect so far as regards the part so resigned as if such resignation had created an avoidance of the united benefice within the meaning of the Scheme.

EXPENSES FUND.

32.—(1) All expenses which shall be incurred by or under the sanction or direction or on behalf of any bishop

Expenses
Fund.

or the Ecclesiastical Commissioners in promoting any union of benefices or any other proposal authorised by this Measure, or otherwise in carrying into execution the provisions of this Measure or preliminary to any proceedings thereunder, and whether in the result an Order shall or shall not be obtained, and all other expenses directed by this Measure to be paid by the Ecclesiastical Commissioners, shall be paid by them out of the Expenses Fund to be provided as hereinafter mentioned, so far as such fund shall suffice therefor and subject to the provisions of subsection (2) hereof.

Separate
accounts to
be kept for
each
diocese.

(2) In administering the said Expenses Fund the Ecclesiastical Commissioners shall cause a separate account to be kept for each diocese, and the moneys from time to time received for or appropriated to the said fund shall be credited to the account of the diocese in which is situate the benefice from the property or revenue whereof such moneys shall arise. And the moneys standing to the credit of the account of any diocese shall not be applicable for payment of any expenses except such as are incurred in relation to benefices situate in that diocese.

Moneys to
be placed to
the credit of
the fund to
the account
of each
diocese.

(3) The Expenses Fund shall be provided as follows, namely: There shall be placed to the credit of the fund to the account of each diocese—

- (a) Such part of any Expenses Fund constituted under the Union of Benefices Act, 1919, as may remain to the credit of that diocese after payment of all expenses payable under the said Act on account of that diocese;
- (b) All proceeds of sale and moneys received for equality of exchange and other moneys hereinbefore directed to be placed to the credit of the Expenses Fund which shall arise from the sale, exchange or disposal of any church site, parsonage house, lands or other hereditaments or furniture, materials or other things belonging to or forming part of the property of any benefice situate within that diocese which shall be ordered or directed to be sold, exchanged or otherwise disposed of under the authority of this Measure; and
- (c) so much or such part as under the authority of this Measure may be carried over to the Expenses

Fund of any property or proceeds of the realisation of any property previously held or applicable under any special trust in connection with any church of a benefice situate within that diocese which shall have been ordered to be pulled down or sold or appropriated to secular uses.

(4) The Ecclesiastical Commissioners may with the approval of the Diocesan Board of Finance apply such of the moneys at any time standing to the credit of any diocese under this section as shall not be required for meeting expenses then already incurred and shall not be set aside for meeting future expenses, or any part of the said moneys for the benefit of any benefice or benefices within that diocese: Provided that before any such application shall be made of any money arising from or representing the property of any benefice the Ecclesiastical Commissioners shall give to the patron of that benefice or (as the case may be) to the patron of any united benefice of which it may then form part, notice in writing of the intended application of the said money, and shall consider any representation in relation thereto which may be made by such patron.

Disposal of surplus funds.

(5) If at any time or times there shall not be a sufficient sum standing to the credit of a diocese to pay any expenses incurred under this Measure in relation to any benefice or benefices within that diocese, the Ecclesiastical Commissioners may, if they think fit, pay such expenses or any part thereof out of their common fund.

Payment of expenses out of Common Fund of Ecclesiastical Commissioners.

(6) For the purposes of this present section any benefice which under any Scheme for union shall be transferred or is to be transferred from one diocese to another shall be deemed to be a benefice situate within the diocese to which the united benefice is assigned.

Constituent benefices deemed situate in diocese of united benefice.

MISCELLANEOUS.

33. In any case in which before the passing of this Measure two or more benefices have been united otherwise than under the Union of Benefices Act, 1919, and more than one parsonage house remains belonging to the united benefice, it shall be lawful for the bishop to signify by an instrument under his hand and seal, to be deposited in the registry of the diocese in which the

House of residence in benefices already united.

united benefice is situate, which of such houses shall be the parsonage house for the incumbent of the united benefice, and such house shall thenceforth be the house of residence of such united benefice for all purposes.

Application
to parts of
benefices
included in
an union.

34. The provisions hereinbefore contained as to churches, parsonage houses and other hereditaments and as to the rights of parishioners, and as to other matters arising in connection with an union of benefices shall, where part only of a benefice is united or proposed to be united to any other benefice or benefices, extend so far as applicable to such part of a benefice as if the same had been an entire benefice.

Admission
to an united
benefice and
fees payable
thereon.

35. When an incumbent holding any one or more of the benefices to be constituted an united benefice also becomes the first incumbent of such united benefice, his admission thereto shall be without presentation or nomination, and he shall not be required to pay any fees in respect of his collation, institution, licence or induction to the united benefice beyond such fees as he would have been liable to pay if he had been collated, instituted, licensed or inducted to the benefice or benefices other than the benefice or benefices which he is so holding, and for the purposes of the fifth section of the Incumbents' Resignation Act, 1871, and of Schedule A. thereto, his tenure of the last-mentioned benefice or benefices shall be deemed to continue notwithstanding his admission to the united benefice.

Restrictions
on exercise
of patron-
age while
proposal for
union is
pending.

36. The patron of a benefice proposed to be united with any other benefice or benefices shall not at any time after he shall have received from the bishop by whom a commission in respect of the proposed union is intended to be issued a notice calling upon him to nominate or join in nominating a commissioner or at any time after the commission shall have been issued, whichever shall first happen, and until the proposal for union shall have been either duly affirmed, or dismissed or withdrawn present or nominate any person to the said benefice in the event of the same being or becoming vacant without the consent in writing of the bishop of the diocese in which the benefice is situate. And during the same period the bishop shall be entitled by virtue of this Measure to refuse to admit and institute or license any person presented or nominated to such benefice without the previous consent

of the bishop: Provided always that the period during which the free right of presentation or nomination to any benefice shall be suspended by virtue of this present section, and such further period, if any, as shall elapse before the order affirming the union shall have been published in the *London Gazette* or, as the case may be, before notice shall have been sent by the bishop to the patron that the proposal for union has been dismissed or withdrawn, shall not be taken into computation for the purpose of any claim to a title to present or nominate to such benefice by reason of lapse.

37. If for the purpose of more conveniently carrying into execution any of the provisions of this Measure it shall appear to the Ecclesiastical Commissioners to be desirable in the case of any one or more of the benefices affected or proposed to be affected by any Scheme that an exchange should be made of the patronage of the said benefice or benefices for the patronage of any other benefice or benefices, an exchange may, with the consent of the patrons of the benefices in respect whereof such exchange is proposed, be made between any persons of the patronage of or any rights of presentation or nomination to the said benefices whether the whole patronage of any of the benefices be vested in one person or in two or more persons under the same title, or in different persons either jointly or by way of alternate rights of presentation or nomination or otherwise. And any such exchange proposed in connection with any Scheme as aforesaid may be recommended by the said Scheme or any supplementary Scheme and shall take effect as part of the terms thereof upon the Scheme being affirmed by an Order in Council duly gazetted either as from the date of the Order or on the happening of such other event as shall be mentioned in that behalf. And when such exchange shall have taken effect the patronage taken by each party by way of exchange shall be discharged from all prior title relating thereto, and the title to the patronage given by each party shall shift and attach to the patronage taken by such party under the exchange, so that the same shall become subject to the like uses, limitations, trusts, powers and provisions in every respect as the patronage so given would have been subject to if such exchange had not been made.

Exchanges
of patron-
age.

Negligible
interests in
patronage.

38. Where the interest of any person as patron of any benefice affected by a proposal for an union under this Measure, whether he be entitled only to alternate or other turns of presentation or nomination or some other partial interest or be entitled to the whole patronage, is so small that the share of the patronage of the united benefice which on a fair and just apportionment would be assignable in respect of the interest of that person and his successors in title (if any) would in the opinion of the Ecclesiastical Commissioners be negligible, such person and his successors in title (if any) may be treated as having no claim to any share or interest in the patronage of the united benefice.

Ecclesi-
astical Com-
missioners
may decide
doubtful
questions of
patronage.

39.—(1) Where the consent or concurrence of the patron of any benefice is required for any of the purposes of this Measure, or any notice is to be given to any patron, or for any other reason it becomes necessary in relation to any proceedings under this Measure to determine who is the patron of any benefice for the purposes of this Measure, and in the opinion of the Ecclesiastical Commissioners it shall be doubtful who is such patron, it shall be lawful for the Ecclesiastical Commissioners to decide the question.

And give
directions
where a
patron
cannot be
found.

(2) In any case where the person or any of the persons entitled to the patronage of a benefice cannot be found and the bishop of the diocese shall so certify in writing, the Ecclesiastical Commissioners may where the patron who cannot be found is patron in respect of a share only of the patronage direct that the patron or patrons in respect of any other share or shares thereof may act on behalf of the patron who cannot be found and may represent him for all the purposes of this Measure, and in any other such case as aforesaid that the bishop may act on behalf of the person or persons entitled to the patronage of the said benefice, and may represent him or them for all the purposes of this Measure.

(3) Any decision or direction of the Ecclesiastical Commissioners and any certificate of the bishop under this section shall be conclusive for all intents and purposes in relation to any such consent, concurrence, notice or proceedings as aforesaid.

40. Where the consent or approval of the patron of a benefice is required for the exercise of any of the powers given by this Measure or any act or thing is to be done by the patron or any notice is to be given to the patron for any of the purposes of this Measure, then in the cases hereinafter mentioned such consent or approval or act or thing may be signified or done and such notice may be given by or to the following persons respectively, namely:—

- (a) Where the patronage of a benefice is in the Crown or is part of the possessions of the Duchy of Lancaster by or to the person or persons by or to whom under section one hundred and twenty-six of the Pluralities Act, 1838, any consent may be testified or any notice given for the purposes of that Act; Consents and notices in special cases.
Where patronage belongs to the Crown or Duchy of Lancaster.
- (b) Where the patronage of a benefice is part of the possessions of the Duchy of Cornwall then by the Duke of Cornwall, or any person duly authorised to act on his behalf under the Duchy of Cornwall Management Act, 1863, including any persons having authority under section thirty-eight or section thirty-nine of the same Statute to act in the name and on behalf of the Duke of Cornwall. And any notice may be given to the Keeper of the Records of the Duchy; and To Duchy of Cornwall.
- (c) Where a patron of a benefice shall be a minor or a person of unsound mind whether so found or not, by or to the guardian of the minor or the committee of the person of unsound mind or any person authorised by an Order of the Court to exercise on his behalf any of the powers of a committee. To a minor or person of unsound mind.

41. Where any person would, but for any Act or Acts of Parliament imposing disability upon Papists, be the patron of a benefice or one of the persons constituting the patron as hereinafter defined, such person shall for the purposes of this Measure, and notwithstanding any disability as aforesaid, be entitled to act and be treated as the patron or one of the patrons (as the case may be) of the said benefice in any proceedings under this Measure so far as shall not be inconsistent with the express provisions of any of the disabling Acts above referred to Roman Catholic patrons.

And in or for the purposes of any proceedings under this Measure in relation to which any such person may lawfully act or be treated as the patron or one of the patrons of a benefice the person or persons who under the said Acts or any of them would be entitled in his place to make or concur in making any presentation or nomination shall not be deemed to have any interest in or any rights in respect of the patronage of the said benefice by reason only of any rights or powers conferred by any of the said Acts.

Power for
Lord
Chancellor
to make
rules.

42.—(1) The Lord Chancellor, with the advice and assistance of the Ecclesiastical Commissioners, may from time to time make and when made, may rescind, alter or add to rules for prescribing anything which under this Measure is to be prescribed, and generally as to all matters and things incidental to or connected with the nomination of commissioners, the holding of local inquiries, appeals to His Majesty in Council, the publication or registration of draft Schemes, Schemes or Orders made under this Measure or as to any other proceedings hereunder, and in particular for regulating—

- (i) the manner in which the nomination of a commissioner may be conducted and signified in cases of joint nomination by Parochial Church Councils and others;
- (ii) the place and time of the sittings of the commissioners, and as to the necessary quorum;
- (iii) the taking of evidence, and hearing of objections at any inquiry;
- (iv) the notices, if any, to be given of the sittings of the commissioners to incumbents, patrons, Parochial Church Councils or other persons, and the service of such notices, and the service of other notices under this Measure;
- (v) the filling of vacancies in the number of commissioners and the time within which the commissioners are to make their report;
- (vi) the submission of draft Schemes to patrons, Parochial Church Councils and Diocesan Committees;
- (vii) the payments, if any, to be made towards the costs and expenses incurred by any Bishop or

by the Ecclesiastical Commissioners, or by the commissioners or the persons appearing before them;

- (viii) the registration and inspection in the diocesan registries or elsewhere of Orders in Council made under this Measure; and
- (ix) the fees to be paid to diocesan and other officials.

(2) All rules made under the Union of Benefices Act, 1919, and in force at the date of the passing of this Measure shall so far as the same are applicable continue in force and extend and apply to proceedings hereunder until rules made under this Measure shall have been substituted therefor.

43. In this Measure unless the context otherwise requires :— Definition clause.

“Benefice” includes rectories and vicarages with cure of souls, perpetual curacies, endowed public chapels, parochial chapelries, and chapelries and districts belonging to or reputed to belong to or annexed or reputed to be annexed to any church or chapel, and includes an united benefice whether the union shall have been effected under this Measure or any Act of Parliament or otherwise.

The expression “the Ecclesiastical Commissioners” means the Ecclesiastical Commissioners for England.

The expression “the commissioners” means the commissioners appointed to a commission under this Measure.

“Bishop” in relation to the diocese of an archbishop includes the archbishop.

The expression “the patron” with reference to any benefice means the person or persons who would for the time being be entitled otherwise than by lapse to present or nominate thereto if the benefice were then vacant, including, in any case where the right to present or nominate is vested in different persons jointly, both or all of the persons whose concurrence would be required for the exercise of the joint right, and including, in any case where the patronage is vested in different persons by way of alternate or other successive

rights of presentation or nomination, every person who is for the time being the person who would be entitled to present or nominate on the next or any subsequent turn.

The expression "Diocesan Conference" means the Diocesan Conference of a diocese constituted as provided in the Regulation passed by the National Assembly of the Church of England and known as the "Diocesan Conferences Regulation, 1922."

The expression "Diocesan Committee" means the Board or Committee appointed under section one of this Measure.

The expression "Diocesan Board of Finance" means the Board of Finance of a diocese constituted or appointed by the Diocesan Conference.

The expression "Diocesan Authority" means the Diocesan Authority as defined by the Parochial Church Councils (Powers) Measure, 1921.

"Prescribed" means prescribed by rules made in pursuance of this Measure, or hereby made applicable to proceedings hereunder.

Repeal and
saving.

44. The Union of Benefices Act, 1919, as originally enacted and as continued by the Union of Benefices Measure, 1921, is hereby repealed except as regards anything done under that Act prior to the date of the passing of this Measure and any proceedings under the said Act in any matter pending at that date; and any Scheme under the repealed Act shall be construed and have effect in all respects as if it had been made under this Measure, and the powers and provisions of this Measure shall be applicable to any united benefice constituted under the repealed Act in all respects as if the union had been effected under this Measure. And any proceedings under the repealed Act in any matter pending as aforesaid may be continued and carried to completion under the authority of this Measure, and anything done in relation to any such pending matter prior to the passing of this Measure shall be valid and effectual for the purposes thereof notwithstanding any differences between the repealed Act and this Measure as to the constitution of commissions or other procedure.

Area of
Measure.

45. The provisions of this Measure shall extend and apply to benefices and sinecures in England (excluding

Wales and Monmouthshire) except those wholly or partly within the City of London.

46. All powers now subsisting under, or by virtue of, the Pluralities Act, 1838, or any Act amending the same in regard to the union or disunion of benefices to which this Measure is applicable shall forthwith determine and be no longer exercisable.

Determina-
tion of
powers
under
Pluralities
Act, 1838.

47. The Interpretation Act, 1889, shall apply to this Measure in like manner as it applies to an Act of Parliament.

Interpreta-
tion.

48. This Measure may be cited as "The Union of Benefices Measure, 1923."

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FOR

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